

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #7	CCRB Case #: 201508753	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/08/2015 7:50 PM	Location of Incident: § 87(2)(b) 46th Precinct stationhouse; § 87(2)(b)	Precinct: 46	18 Mo. SOL 4/8/2017	EO SOL 4/8/2017	
Date/Time CV Reported Thu, 10/15/2015 10:12 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/15/2015 10:12 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Johnny Chalen	09575	947694	046 PCT
2. POM Nicholas Kourounis	28949	954029	046 PCT
3. POM Valdrin Nikqi	07009	954177	046 PCT
4. An officer			046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Laura Barbato	270	944350	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Nicholas Kourounis	Discourtesy: On October 8, 2015, PO Nicholas Kourounis spoke discourteously to § 87(2)(b) in the vicinity of § 87(2)(b) Bronx, NY, 10458.	§ 87(2)(b)
B.POM Johnny Chalen	Force: On October 8, 2015, PO Johnny Chalen used physical force against § 87(2)(b) inside the 46th Precinct stationhouse.	§ 87(2)(b)
C.POM Valdrin Nikqi	Abuse: On November 5, 2015, PO Valdrin Nikqi frisked § 87(2)(b) in front of § 87(2)(b) Bronx, NY, 10458.	§ 87(2)(b)
D. An officer	Abuse: On November 5, 2015, an officer frisked § 87(2)(b) § 87(2)(b) Bronx, NY, 10458.	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on October 15, 2015, in regards to an incident that occurred on October 8, 2015. During § 87(2)(b)'s in-person statement on November 6, 2015, he alleged that an additional incident involving the same officers occurred on November 5, 2015.

On October 8, 2015, at approximately 5 p.m., § 87(2)(b) and several unidentified individuals were sitting on the front steps of the building in which § 87(2)(b) resides – located at § 87(2)(b) in the Bronx – when PO Johnny Chalen, PO Nicholas Kourounis, and Sgt. Laura Barbato approached him. The officers requested several times that § 87(2)(b) leave the area because he was blocking pedestrian traffic, but § 87(2)(b) refused. § 87(2)(b) was unable to provide his ID, so he was subsequently placed in handcuffs and transported to the 46th Precinct stationhouse. En route to the stationhouse, PO Kourounis allegedly told § 87(2)(b) to “shut the fuck up” and “fuck your mother” (**Allegation A**). While inside the stationhouse PO Chalen escorted § 87(2)(b) to a bathroom and allegedly pushed his face against a wall (**Allegation B**). § 87(2)(b) did not sustain any injuries from PO Chalen's alleged use of force. § 87(2)(b) was later released with a summons for § 87(2)(b).

On November 5, 2015, at approximately 8 p.m., § 87(2)(b) was in front of § 87(2)(b) in the Bronx with his friend, § 87(2)(b) when they were approached by PO Chalen, PO Kourounis, Sgt. Barbato, and PO Valdrin Nikqi. Both § 87(2)(b) and § 87(2)(b) allegedly had open containers of alcohol when they were approached by the officers. PO Nikqi proceeded to frisk § 87(2)(b) (**Allegation C**), while another officer, who is unidentified to the investigation, frisked § 87(2)(b) (**Allegation D**). Afterwards, PO Kourounis issued § 87(2)(b) a summons for § 87(2)(b) and he issued § 87(2)(b) a summons for § 87(2)(b).

§ 87(2)(g)

Mediation, Criminal, and Civil History

- This case was unsuitable for mediation due to § 87(2)(b)'s pending lawsuit against the City of New York.
- § 87(2)(b) filed a Notice of Claim against the City of New York requesting \$1,000,000 in compensation in regards to the incident that occurred on October 8, 2015 (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second complaint with the CCRB § 87(2)(b)

Allegation A – Discourtesy: On October 8, 2015, PO Nicholas Kourounis spoke discourteously to § 87(2)(b) in the vicinity of § 87(2)(b) Bronx, NY, 10458.

§ 87(2)(b) alleged that while he was being transported to the 46th Precinct stationhouse, PO Kourounis told him to “shut the fuck up” and “fuck your mother” (Board Review 04). In § 87(2)(b)'s Notice of Claim, the narrative noted that the officers were “badgering” him during the ride to the stationhouse to provoke some type of physical action; however, there was no specific mention of an officer using profanity against him (Board Review 01).

PO Kourounis denied uttering the aforementioned statements and he denied using any profanity against § 87(2)(b) (Board Review 05). PO Chalen and Sgt. Barbato, who were in the vehicle with PO Kourounis and § 87(2)(b) at the time of the alleged discourtesies, did not hear PO Kourounis use profanity against § 87(2)(b) (Board Review 06-07).

§ 87(2)(g)

Allegation B – Force: On October 8, 2015, PO Johnny Chalen used physical force against § 87(2)(b) inside the 46th Precinct stationhouse.

§ 87(2)(b) alleged that at the 46th Precinct stationhouse, PO Chalen escorted him to a bathroom in the back, grabbed his chin, and then “slammed” his face against a wall. § 87(2)(b) acknowledged that he was resistant by tensing his body while being escorted to the back. § 87(2)(b) did not sustain any injuries as a result of PO Chalen’s alleged use of force (Board Review 04). In § 87(2)(b)'s Notice of Claim narrative, § 87(2)(b) alleged that PO Chalen escorted him to the bathroom and, “without justification, slammed [his] face against a wall” (Board Review 01).

PO Chalen stated that § 87(2)(b) was combative and began to scream, curse, and push away from him as he was escorting him to the back of the stationhouse. While trying to remove § 87(2)(b)'s handcuffs, PO Chalen grabbed § 87(2)(b)'s arms to turn him around. Immediately after, § 87(2)(b) began spitting in PO Chalen’s face, which prompted PO Chalen to quickly push § 87(2)(b)'s face away with his hand. PO Chalen “had no idea” if § 87(2)(b)'s face made contact with a wall after he pushed his face away, but he stated that § 87(2)(b) did not complain of any injuries or pain after the incident (Board Review 06). PO Kourounis did not observe any altercation between PO Chalen and § 87(2)(b) inside the stationhouse and he stated that he was with § 87(2)(b) until he was placed inside a cell. PO Kourounis did observe § 87(2)(b) spit, but he stated that it occurred in front of § 87(2)(b) and not inside the stationhouse as alleged by PO Chalen. This was confirmed by his memo book (Board Review 15). PO Kourounis could not recall whether the spit was directed at a specific officer or whether it made contact with any officer (Board Review 05). Sgt. Barbato remained near the front desk and did not have any further interaction with § 87(2)(b) after he was escorted to the back, so she was unable to witness whether an altercation occurred between PO Chalen and § 87(2)(b). She made no mention of § 87(2)(b) spitting at either location (Board Review 07).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: On November 5, 2015, PO Valdrin Nikqi frisked § 87(2)(b) in front of § 87(2)(b) Bronx, NY, 10458.

It is undisputed that PO Nikqi frisked § 87(2)(b)

§ 87(2)(b) alleged that PO Chalen commanded him to put his hands on a vehicle so that his partner, PO Nikqi, could pat him down. PO Nikqi then proceeded to pat down § 87(2)(b)'s two front pants' pockets (Board Review 04).

PO Nikqi admitted to conducting a “standard” frisk on § 87(2)(b) which involved a pat down of § 87(2)(b)'s waist, up to his armpits, and then down to his ankles. PO Nikqi stated that the frisk was standard procedure in cases where criminal summonses were issued. PO Nikqi acknowledged that he did not have any reason to suspect that § 87(2)(b) had a weapon on his person, nor did he observe any bulges indicative of a weapon on § 87(2)(b). At the time, § 87(2)(b) did not have his ID on his person, so the officers waited approximately ten minutes for § 87(2)(b)'s wife to bring his ID. Afterwards, PO Kourounis issued § 87(2)(b) two summonses: one for § 87(2)(b) and one for § 87(2)(b) (Board Review 08). PO Kourounis corroborated that PO Nikqi frisked § 87(2)(b) and stated that it was a standard procedure performed to ensure officer safety. PO Kourounis stated that there was no indication that § 87(2)(b) had a weapon on his person when he was frisked (Board Review 05). PO Chalen acknowledged that § 87(2)(b) was frisked, but was unable to recall the details, though he stated that he did not observe any bulges or signs indicative of a weapon on § 87(2)(b)'s person before the frisk. PO Chalen also stated that § 87(2)(b) was frisked because a person with his prior criminal history, which may have included a burglary and a possible possession of a weapon, could “turn around and take out a gun out of nowhere and start letting shots off;” however, PO Chalen did not provide any details indicating that § 87(2)(b)'s behavior at the location was reflective of his alleged criminal history (Board Review 06). Sgt. Barbato did not recall whether § 87(2)(b) was frisked during the stop (Board Review 07).

In instances where an individual has been issued a summons (i.e. the individual has not been arrested), police officers are not permitted to conduct a search of the individual. People v. Reid, 24 N.Y.3d 615, 619-20 (2014) (Board Review 09). In order to perform a frisk, an officer must have reasonable suspicion that a person is armed and dangerous. Arizona v. Johnson, 555U.S. 323 (2009) (Board Review 10).

§ 87(2)(g)

Allegation D – Abuse of Authority: On November 5, 2015, an officer frisked § 87(2)(b) in front of § 87(2)(b) Bronx, NY, 10458.

In § 87(2)(b)'s unverified phone statement, he stated that he was asked whether he had any weapons, commanded to turn around, and was then frisked by an unidentified officer (Board Review 11). § 87(2)(b) did not respond to the CCRB's numerous attempts to schedule him for a verified statement. All of the officers – with the exception of Sgt. Barbato – testified that § 87(2)(b) was frisked alongside § 87(2)(b) but they were unable to identify the specific officer or circumstances that pertained to his frisk (Board Review 05, 06, 08).

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Squad: _____

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date